

## **TENTATIVE RULINGS**

**FOR: September 10, 2026**

If you do not see a tentative ruling for a scheduled matter, then attendance at the hearing is required.

**Remote appearances via Zoom are optional.** Please use Zoom at the links listed below.

If you have cases scheduled in both courtrooms at the same time, first log-in to the Zoom session for the department that has your quickest matter(s), and upon check-in, ask the clerk to email the clerk in the other department to advise that you will be late to the other Zoom session.

### **Dept. A Zoom**

**Join by Video**

<https://www.zoomgov.com/j/1601453113?pwd=XpBlla8kBiCpGb0ukQyabkmCrgDdWM.1>

**Effective immediately, Department A no longer permits remote Zoom appearance by telephone.**

### **Dept. B Zoom**

**Join by Video**

<https://www.zoomgov.com/j/1618700612?pwd=3bjaxoPtjuWe7B7JQWBQ8muwSuMiXC.1>

**Effective immediately, Department A no longer permits remote Zoom appearance by telephone.**

**Court Reporting Services** – The Court does not provide official court reporters in proceedings for which such services are not legally mandated. Parties are responsible for either making the appropriate request in advance or arranging for their own private court reporter. Go to <http://napacountybar.org/court-reporting-services/> for information about local private court reporters. Attorneys or parties must confer with each other to avoid having more than one court reporter present for the same hearing.

**“Recording Court proceedings (whether by Zoom’s AI Meeting Summary functionality or by any other means) is PROHIBITED without express permission from a judicial officer. (Cal. Rules of Court, Rule 1.150(c) & (d))**

**PROBATE CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.**

**Conservatorship of Neftaly Gutierrez**

**25PR000186**

REVIEW – 1ST YEAR

**TENTATIVE RULING:** The matter is CONTINUED to October 08, 2026, at 8:30 a.m. in Dept. A to allow the Conservator to file: (1) Notice of Conservatee’s Rights (Judicial Council form GC-341) mailed to relatives of the proposed Conservatee within the second degree; and (2)

Care Plan (Judicial Council form GC-355/356). The Clerk is directed to send notice to the parties.

The Conservators are urged to consult with the Court's Self-Help Center for assistance.

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**Conservatorship of Octavio Hernandez Espinoza**

**22PR000222**

REVIEW HEARING

**APPEARANCE REQUIRED**  
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**In The Matter of Betty J. Dondero Trust Dated December 20, 1999**

**25PR000252**

FIRST AMENDED PETITION FOR: (1) ACCOUNTING; (2) BREACH OF TRUST; (3) WRONGFUL TAKING OR WITHHOLDING OF TRUST PROPERTY; (4) CONVERSION; (5) FRAUD; (6) UNJUST ENRICHMENT; AND (7) CONSTRUCTIVE TRUST

**APPEARANCE REQUIRED.** The parties are directed to appear to inform the Court of the status of the Case and, if appropriate, set the matter for hearing.  
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**Conservatorship of Richard Douglas Royer**

**26-66054**

SECOND AND FINAL ACCOUNTING AND REPORT OF CONSERVATOR; PETITION FOR ALLOWANCE OF FEES TO CONSERVATOR OF PERSON AND ESTATE, FOR ATTORNEY FEES, AND FOR TERMINATION OF CONSERVATORSHIP

**TENTATIVE RULING:** The Petition is GRANTED. The Court has been informed that the Conservatee is deceased. The Conservatorship is therefore terminated and all future hearings VACATED.  
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**Estate of The Special Needs Trust of Richard Douglas Royer**

**22PR000177**

FIRST AND FINAL ACCOUNTING AND REPORT OF TRUSTEE; PETITION FOR ALLOWANCE OF FEES TO TRUSTEE, ALLOWANCE OF COMPENSATION TO TRUSTEE'S ATTORNEY AND FOR TERMINATION OF SPECIAL NEEDS TRUST

**TENTATIVE RULING:** The Petition is GRANTED. The Court has been informed that the Conservatee is deceased. The Conservatorship is therefore terminated.  
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